



Bill Number: S.B. 1566

Petersen ADD COW Floor Amendment

Reference to: Senate engrossed bill

Amendment drafted by: Anna Nguyen

FLOOR AMENDMENT EXPLANATION

1. Removes the entitlement to an expedited judicial review for a property right claim or a complaint that seeks review of a state or local land use determination.
2. Specifies that a plaintiff who files a complaint in superior court that asserts a malicious delay claim for a single-family residential application is entitled to expedited judicial review of the claim.
3. Requires the court, within 10 calendar days after the service of the complaint, to set, rather than conduct, an initial case management conference with the parties to establish an expedited schedule for discovery, briefings and hearing.
4. Defines *application*, for a county as any of the following for a single-family residential development:
 - a) a site plan;
 - b) a development plan;
 - c) a land division;
 - d) a lot line adjustment;
 - e) a lot tie;
 - f) a preliminary or final plat;
 - g) a plat amendment; or
 - h) a building permit.
5. Modifies the statement of legislative findings.
6. Makes conforming changes.

ADDITIONAL COW
PETERSEN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1566
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Malicious delay; attorney general; violation; civil
5 penalty; definitions

6 A. NOTWITHSTANDING ANY OTHER LAW, A CITY OR TOWN IN THIS STATE MAY
7 NOT MALICIOUSLY DELAY ADOPTED LICENSING TIME FRAMES PURSUANT TO SECTION
8 9-835 FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION OR A RESPONSE TO AN
9 APPLICATION FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION.

10 B. THE ATTORNEY GENERAL, BASED ON A WRITTEN COMPLAINT BY A PROPERTY
11 OWNER WITH AN APPLICATION BEFORE A CITY OR TOWN, MAY ENFORCE THIS SECTION.

12 C. FOLLOWING AN INVESTIGATION AND FINDINGS BY THE ATTORNEY GENERAL,
13 A CITY OR TOWN IN THIS STATE THAT IS FOUND TO HAVE VIOLATED THIS SECTION
14 BY CLEAR AND CONVINCING EVIDENCE IS SUBJECT TO A CIVIL PENALTY OF \$5,000
15 PER VIOLATION REGARDLESS OF THE DURATION OF THE DELAY.

16 D. THIS SECTION DOES NOT MODIFY THE AUTHORITY OF A BUILDING CODE
17 OFFICIAL TO WITHHOLD A CERTIFICATE OF OCCUPANCY IN ACCORDANCE WITH A
18 CITY'S OR TOWN'S ADOPTED CODES AND ORDINANCES.

19 E. IF THE ATTORNEY GENERAL FINDS THAT A CITY OR TOWN VIOLATED THIS
20 SECTION, THE CITY OR TOWN MAY BRING AN ACTION IN A COURT WITH APPROPRIATE
21 JURISDICTION TO CHALLENGE THE FINDING OF A MALICIOUS DELAY.

22 F. FOR THE PURPOSES OF THIS SECTION:

23 1. "APPLICATION" MEANS A SITE PLAN, DEVELOPMENT PLAN, LAND
24 DIVISION, LOT LINE ADJUSTMENT, LOT TIE, PRELIMINARY PLAT, FINAL PLAT, PLAT
25 AMENDMENT OR BUILDING PERMIT FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION.

26 2. "MALICIOUS":

27 (a) MEANS ACTING WITH SPECIFIC INTENT TO OBSTRUCT APPROVAL OF AN
28 APPLICATION BY IMPOSING REQUIREMENTS NOT SPECIFICALLY AUTHORIZED BY CODE,

1 ORDINANCE, STANDARD OR OTHER LEGAL REQUIREMENTS, REPEATED UNEXPLAINED
2 DELAYS OF MORE THAN TWICE THE CITY'S OR TOWN'S ADOPTED LICENSING TIME
3 FRAME PURSUANT TO SECTION 9-835 FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION
4 OR DELAYS RESULTING FROM OTHER PENDING APPLICATIONS BY THE SAME APPLICANT.

5 (b) DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE CONSTRAINTS, DELAYS
6 CAUSED BY THE APPLICANT OR A THIRD PARTY, GOOD FAITH ERRORS OR ENFORCEMENT
7 OF ADOPTED TECHNICAL CODES, INCLUDING FIRE, BUILDING, TRANSPORTATION AND
8 TRAFFIC, UTILITIES FACILITIES AND PUBLIC NUISANCE CODES, ORDINANCES OR
9 STANDARDS.

10 Sec. 2. Title 11, chapter 2, article 4, Arizona Revised Statutes,
11 is amended by adding section 11-269.31, to read:

12 11-269.31. Malicious delay; attorney general; county
13 attorney; violation; civil penalty; definition

14 A. NOTWITHSTANDING ANY OTHER LAW, A COUNTY IN THIS STATE MAY NOT
15 MALICIOUSLY DELAY A RESPONSE TO A LICENSE, APPROVAL OR PERMIT OR ANY
16 SIMILAR APPLICATION OR REQUEST.

17 B. THE ATTORNEY GENERAL OR COUNTY ATTORNEY MAY ENFORCE THIS
18 SECTION.

19 C. A COUNTY IN THIS STATE THAT VIOLATES THIS SECTION IS SUBJECT TO
20 A CIVIL PENALTY OF \$5,000 PER VIOLATION.

21 D. IF THE ATTORNEY GENERAL OR THE COUNTY ATTORNEY FINDS THAT A
22 COUNTY VIOLATED THIS SECTION, THE COUNTY MAY BRING AN ACTION IN A COURT
23 WITH APPROPRIATE JURISDICTION TO CHALLENGE THE FINDING OF A MALICIOUS
24 DELAY.

25 E. FOR THE PURPOSES OF THIS SECTION, "MALICIOUS":

26 1. MEANS ACTING IN BAD FAITH OR WITH SPECIFIC INTENT TO OBSTRUCT
27 APPROVAL OF A LICENSE, APPROVAL OR PERMIT OR ANY SIMILAR APPLICATION OR
28 REQUEST BY IMPOSING REQUIREMENTS NOT SPECIFICALLY AUTHORIZED BY CODE,
29 ORDINANCE OR STANDARD OR ENGAGING IN SELECTIVE ENFORCEMENT, REPEATED
30 UNEXPLAINED DELAYS OR ACTIONS TAKEN WITHOUT A LEGITIMATE HEALTH, SAFETY OR
31 PLANNING CONCERN.

32 2. DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE CONSTRAINTS, GOOD
33 FAITH ERRORS OR ENFORCEMENT OF IDENTIFIED CODES, ORDINANCES OR STANDARDS.

34 Sec. 3. Title 12, chapter 8, article 2.1, Arizona Revised Statutes,
35 is amended by adding section 12-1139, to read:

36 12-1139. Property right claims; malicious delay; land use
37 claims; expedited review; definitions

38 A. A PLAINTIFF THAT FILES A COMPLAINT IN SUPERIOR COURT THAT
39 ASSERTS A [MALICIOUS DELAY] [PROPERTY RIGHT] CLAIM [PURSUANT TO SECTIONS
40 9-500.54 OR 11-269.31 FOR A SINGLE-FAMILY RESIDENTIAL APPLICATION] [OR
41 THAT SEEKS REVIEW OF A STATE OR LOCAL LAND USE DETERMINATION] IS ENTITLED
42 TO EXPEDITED JUDICIAL REVIEW OF THE CLAIM.

1 B. WITHIN TEN CALENDAR DAYS AFTER THE ~~[FILING]~~ [SERVICE] OF THE
2 COMPLAINT, THE COURT SHALL ~~[CONDUCT]~~ [SET] AN INITIAL CASE MANAGEMENT
3 CONFERENCE WITH THE PARTIES TO ESTABLISH AN EXPEDITED SCHEDULE FOR
4 DISCOVERY, BRIEFING AND HEARINGS.

5 C. UNLESS OTHERWISE ORDERED FOR GOOD CAUSE, ALL FACT DISCOVERY IN
6 THE ACTION SHALL BE COMPLETED AS EXPEDITIOUSLY AS POSSIBLE AFTER THE
7 INITIAL CASE CONFERENCE.

8 D. THE COURT SHALL CONSIDER AND RULE ON ALL MOTIONS FOR SUMMARY
9 JUDGMENT OR OTHER DISPOSITIVE MOTIONS AS SOON AS PRACTICABLE.

10 E. THE COURT SHALL SET A TRIAL OR FINAL HEARING DATE AS SOON AS
11 PRACTICABLE AFTER THE CASE MANAGEMENT CONFERENCE, ABSENT A FINDING OF GOOD
12 CAUSE.

13 F. AN APPEAL TO THE COURT OF APPEALS FROM A SUPERIOR COURT JUDGMENT
14 IN AN ACTION DESCRIBED IN SUBSECTION A OF THIS SECTION IS ENTITLED TO A
15 SCHEDULING PREFERENCE ON THE APPELLATE DOCKET, AND THE COURT OF APPEALS
16 SHALL EXPEDITE BRIEFING SCHEDULES AND ORAL ARGUMENT CONSISTENT WITH THE
17 INTERESTS OF JUSTICE UNLESS THE COURT FINDS FOR GOOD CAUSE THAT EXPEDITED
18 REVIEW IS NOT FEASIBLE.

19 G. A PARTY MAY PETITION FOR SPECIAL ACTION RELIEF IN THE COURT OF
20 APPEALS OR SUPREME COURT AND SUCH ACTIONS SHALL RECEIVE EXPEDITED
21 PROCESSING.

22 H. FOR THE PURPOSES OF THIS SECTION:

23 [1. "APPLICATION" MEANS ANY OF THE FOLLOWING FOR SINGLE-FAMILY
24 RESIDENTIAL DEVELOPMENT:

- 25 (a) A SITE PLAN.
- 26 (b) A DEVELOPMENT PLAN.
- 27 (c) A LAND DIVISION.
- 28 (d) A LOT LINE ADJUSTMENT.
- 29 (e) A LOT TIE.
- 30 (f) A PRELIMINARY OR FINAL PLAT.
- 31 (g) A PLAT AMENDMENT.
- 32 (h) A BUILDING PERMIT.]

33 ~~[1. "LAND USE DETERMINATION" MEANS ANY DECISION, ORDER OR ACTION OF~~
34 ~~A GOVERNMENT AGENCY, POLITICAL SUBDIVISION OF THIS STATE OR HEARING~~
35 ~~OFFICER THAT DIRECTLY AFFECTS THE PERMISSIBLE USE OF REAL PROPERTY,~~
36 ~~INCLUDING ZONING DECISIONS, CONDITIONAL USE PERMITS, VARIANCES, SITE PLAN~~
37 ~~APPROVALS AND EXACTIONS.]~~

38 ~~2. "PROPERTY RIGHT CLAIM" MEANS A CLAIM THAT A GOVERNMENT ACTION OR~~
39 ~~REGULATION HAS TAKEN, DAMAGED OR OTHERWISE IMPAIRED A LEGALLY PROTECTED~~
40 ~~PROPERTY RIGHT, INCLUDING TAKINGS, REGULATORY TAKINGS AND SIMILAR~~
41 ~~CONSTITUTIONAL OR STATUTORY CLAIMS.]~~

1 Sec. 4. Legislative findings

2 The legislature finds and declares that the purpose of section
3 12-1139, Arizona Revised Statutes, as added by this act, is to ensure that
4 actions in which a plaintiff asserts a ~~[property right or seeks judicial~~
5 ~~review of a state or local land use determination are]~~ [malicious delay
6 property claim pursuant to section 9-500.54 or 11-269.31, Arizona Revised
7 Statutes, as added by this act for a single-family residential application
8 is] resolved in a timely and efficient manner to prevent undue harm
9 resulting from prolonged uncertainty.

10 Enroll and engross to conform

11 Amend title to conform

WARREN PETERSEN

~~1566FloorPETERSEN3.docx~~

~~02/27/2026~~

~~09:24 AM~~

~~C: LAT~~

~~130LQYSGK~~

1566FloorPETERSEN3.1.docx

02/27/2026

12:24 PM

S: AN/ci

130LQYSGK